

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Squad #12	CCRB Case #: 201507272	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/15/2015 10:58 PM	Location of Incident: North West Corner Astoria Boulevard and 99th Street		18 Mo. SOL 2/15/2017	Precinct: 115	
Date/Time CV Reported Wed, 08/26/2015 10:40 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 08/26/2015 10:49 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Bryan Vaughan	23065	951372	115 PCT
2. POM Brian Donohue	13021	952694	115 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jesse Terlinsky	03063	937619	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Bryan Vaughan	Abuse: Police Officer Bryan Vaughan questioned § 87(2)(b)	A . Substantiated
B . POM Brian Donohue	Abuse: Police Officer Brian Donohue frisked § 87(2)(b)	B . Unsubstantiated
C . POM Brian Donohue	Abuse: Police Officer Brian Donohue searched § 87(2)(b)	C . Unsubstantiated
D . POM Brian Donohue	Abuse: Police Officer Brian Donohue frisked § 87(2)(b)	D . Unsubstantiated
E . POM Brian Donohue	Abuse: Police Officer Brian Donohue searched § 87(2)(b)	E . Unsubstantiated
F . POM Bryan Vaughan	Abuse: Police Officer Bryan Vaughan searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Substantiated

Case Summary

On August 28, 2015, § 87(2)(b) filed the following complaint on his own behalf and on behalf of § 87(2)(b) and § 87(2)(b) with the CCRB over the call processing system. § 87(2)(b) § 87(2)(b)'s friend, was also in the vehicle and a witness to the incident, but she was not a victim to any of the allegations.

On August 15, 2015, at approximately 10:49 a.m., § 87(2)(b) was driving his SUV with all four of his windows rolled down with his friends § 87(2)(b) § 87(2)(b) and § 87(2)(b). At 99th Street and Astoria Boulevard in Queens, PO Bryan Vaughan, Sgt. Jesse Terlinsky, and PO Brian Donohue, all from the 115th Precinct, pulled § 87(2)(b) over (see allegations not pleaded). PO Vaughan approached § 87(2)(b) § 87(2)(b)'s driver's side and recovered § 87(2)(b) driver's license and registration. PO Vaughan asked § 87(2)(b) if he had anything in the vehicle that the officers should know about (**Allegation A**). § 87(2)(b) informed PO Vaughan that he had a knife clipped to his waistband and he lifted his shirt to show it to PO Vaughan. PO Vaughan asked § 87(2)(b) to step out of the vehicle and PO Vaughan removed the knife from § 87(2)(b)'s waistband. PO Donohue allegedly asked § 87(2)(b) and § 87(2)(b) to step out of the vehicle. PO Donohue allegedly frisked and searched § 87(2)(b) § 87(2)(b)'s and § 87(2)(b)'s pockets (**Allegations B, C, D, and E**). PO Vaughan searched the vehicle (**Allegation F**). § 87(2)(b) was handcuffed, brought to the 115th Precinct stationhouse, and he was charged for § 87(2)(b). He was released with a DAT. § 87(2)(b)'s vehicle was released to § 87(2)(b) and § 87(2)(b) at the incident location. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On October 23, 2015, this case was reassigned from Investigator Rachel Buhner to Investigator Lily Carayannis.

§ 87(2)(g)

This case has no video evidence.

Mediation, Civil and Criminal Histories

- § 87(2)(b) refused to mediate this complaint.
- On December 16, 2015, a FOIL request for any Notice of Claim was submitted to the New York City Office of the Comptroller and the request is still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) and § 87(2)(b) have been a party (Board Review 02).

- PO Bryan Vaughan has been a Member of Service for four years and he has no substantiated CCRB allegations pleaded against him § 87(2)(g)
- PO Brian Donohue has been a Member of Service for three years and this is the first CCRB allegation against him.

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A—Abuse of Authority: Police Officer Bryan Vaughan questioned § 87(2)(b)

It is undisputed that § 87(2)(b) was pulled over, that § 87(2)(b) was calm and compliant when interacting with PO Vaughan, and that the other civilians in the vehicle were calm and compliant. It is undisputed that when asked, § 87(2)(b) rolled down all of the windows in the vehicle. It is undisputed that PO Vaughan asked § 87(2)(b) if there was anything that the officers should know about inside of the vehicle and § 87(2)(b) informed him that he was in possession of a knife that was clipped to his waistband. It is undisputed that PO Vaughan asked § 87(2)(b) to step out of the vehicle and it is undisputed that § 87(2)(b) stepped out of the vehicle, allowing PO Vaughan to remove the knife from his waistband.

PO Vaughan (Board Review 04) stated that he did not suspect § 87(2)(b) of breaking any laws other than having the tinted windows. He asked § 87(2)(b) if he had anything in the vehicle that the officers should know about solely because it was dark and § 87(2)(b) had tinted windows.

PO Donohue (Board Review 05) and Sgt. Terlinsky (Board Review 06) did not hear or know what led PO Vaughan to obtain knowledge of the knife on § 87(2)(b)'s waistband and they did not suspect § 87(2)(b) of any crime beyond the vehicle stop.

People v Saad 19 Misc. 3d 1103 (A) (Board Review 07) states that asking an individual if there was anything in the person's possession that an officer should know is an escalation from a common law inquiry to a level two inquiry (see also New York v. Hollman 79 N.Y.2d 181 (Board Review 08)).

People v Carr 103 A.D.3d 1194 (Board Review 09) states that an individual looking nervous and being in a high crime area during a vehicle stop is not sufficient to provide an officer with founded suspicion, the required level of suspicion to ask level two questions.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be substantiated.

Allegation B—Abuse of Authority: Police Officer Brian Donohue frisked § 87(2)(b)

§ 87(2)(b)

Allegation C—Abuse of Authority: Police Officer Brian Donohue searched § 87(2)(b)

§ 87(2)(b)

Allegation D—Abuse of Authority: Police Officer Brian Donohue frisked § 87(2)(b) § 87(2)(b)

Allegation E—Abuse of Authority: Police Officer Brian Donohue searched § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was unavailable for the investigation. § 87(2)(b) (Board Review 10) and § 87(2)(b) (Board Review 11) both allege that the officer that approached the passenger side window searched § 87(2)(b) and § 87(2)(b) § 87(2)(b) (Board Review 12) stated, during a telephone statement, that § 87(2)(b) and § 87(2)(b) were searched by one of the officers, though she was not certain which. § 87(2)(b) was asked to step out of the vehicle, which she did, but she was not frisked or searched. Both PO Vaughan and Sgt. Terlinsky agree that PO Donohue approached the passenger side window and PO Donohue acknowledged standing with the passengers of the vehicle during the stop.

PO Donohue denied ever frisking or searching anyone at the location. PO Donohue denied ever seeing any officer perform this action. PO Donohue did not suspect § 87(2)(b) and § 87(2)(b) of any crime.

PO Vaughan stated that § 87(2)(b) and § 87(2)(b) turned out the contents of their pockets of their own accord after he asked if they had anything on them. He asked this after the knife was discovered on § 87(2)(b)'s person and a knife was discovered in the center console. No one asked them to turn out their pockets. He did not have any further interaction with them or see any officer have any further interaction with them.

Sgt. Terlinsky was inside of his vehicle at the time and he did not recall seeing anyone other than § 87(2)(b) frisked and searched and he did not recall how their identifications were recovered.

§ 87(2)(g)

It is therefore recommended that **Allegations B, C, D, and E** be unsubstantiated.

Allegation F—Abuse of Authority: Police Officer Bryan Vaughan searched the vehicle in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

It is undisputed that PO Vaughan searched § 87(2)(b)'s vehicle after removing the knife from his pocket. It is undisputed that during the whole process § 87(2)(b) and his passengers were calm and compliant. It is undisputed that all of the passengers were outside of the vehicle at the time that PO Vaughan entered and searched the vehicle. It is undisputed that § 87(2)(b) was issued a Desk Appearance Ticket (DAT) at the stationhouse. It is undisputed that the vehicle was released to the passengers at the location of the stop and that the vehicle was not vouchered.

§ 87(2)(b) stated that PO Vaughan asked him if he was certain that there was nothing else inside the vehicle that officers needed to know about. § 87(2)(b) stated that there was not. PO Vaughan then searched his vehicle.

PO Vaughan said that § 87(2)(b) volunteered that he had a second knife in the center console. PO Vaughan entered the vehicle to look for the additional knife. He searched around the driver's and passenger's seat. PO Vaughan discovered a small razor blade knife in the vehicle which was not illegal. PO Vaughan placed the knife back in the center console and did not voucher it. PO Vaughan stated that § 87(2)(b) was not considered under arrest until "after we talked to the other two gentlemen [§ 87(2)(b) and § 87(2)(b) ran them, and put the second knife back in the vehicle." PO Vaughan planned on issuing a DAT for the possession of the gravity knife to § 87(2)(b) during the search.

§ 87(2)(g)

People v. Galak 79 N.Y.2d 181 (Board Review 13) states that officers need probable cause to search a vehicle and there must exist a nexus between the arrest and the probable cause to search.

People v. Newman 96 A.D.3d 34 (Board Review 14) states that an officer can search a vehicle for a weapon when there is a substantial likelihood that there is a weapon in the vehicle and that the weapon constitutes an actual and specific danger to the safety of the officer.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be **substantiated**.

Squad: 12

Investigator: _____ Lily Carayannis December 29, 2015
Signature Print Date

Pod Leader: _____

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	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date